

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

UNITED STATES OF AMERICA,	)	
	)	
vs.	)	Case No. 1:15-cr-48 (CRC)
	)	
DAVID BRONSTEIN, <i>et al.</i> ,	)	
	)	
DEFENDANTS	)	
	)	
	)	
_____	)	

MOTION IN LIMINE

Defendants respectfully move the Court for a ruling *in limine* excluding portions of an audio recording containing statements by Justice Scalia; permit argument in closing about a necessity defense; and permit questioning and argument about the history and enforcement of 18 U.S.C. § 1507.

/s/ Jeffrey Light

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MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION
IN LIMINE

I. Exclusion of Justice Scalia's Comments

At trial, the government is expected to play an audio recording from the Supreme Court during which Defendants made statements and several Supreme Court Justices made statements. The government has provided to undersigned counsel a transcript of the recording. The parties stipulate and agree that during the recording Justice Scalia states, "They should give them some stiff sentences is what they ought to do," and "Give them stiff, stiff sentences. Stiff sentences." These comments should be excluded because they are irrelevant to the issues in the case and are unfairly prejudicial, as the comments of a Supreme Court Justice regarding the outcome of this case would potentially carry significant weight with the jury.

II. Permitting Necessity Defense.

Defendants are charged with a violation of 40 U.S.C. § 6134 which prohibits, *inter alia*, uttering loud language in the Supreme Court building. There are times when uttering loud language – although violating the literal language of the statute – would be justified. For example, had Defendants shouted “Fire!” at the top of their lungs in order to alert everyone in the courtroom to the existence of a raging inferno, such behavior would be legally excusable in order to prevent a greater harm. This is the essence of the necessity defense.

There is nothing in the text or legislative history of 40 U.S.C. § 6134 which indicates that Congress intended to eliminate the common law of necessity as a defense to violation of that statute. Although the absence of justification is not an explicit element of the crime of uttering loud language, the common law of necessity is nevertheless available. In *United States v. Bailey*, 444 U.S. 394 (1980), for example, the Supreme Court discussed necessity as a defense to the charge of escape from prison. While it ultimately concluded that the defendants did not establish facts entitling them to a jury instruction on the necessity defense, the Supreme Court recognized the viability of necessity as an affirmative defense, even where such a defense was not provided for in the text of the statute. *Id.* at 415.

While it would be premature at this time for the Court to rule on whether the defendants will be entitled to a jury instruction on the necessity defense, the Court should at least permit the defendants an opportunity to elicit evidence supporting such a defense and argue the necessity defense in closing.

The contours of the common law of necessity have not been precisely defined by either the Supreme Court or the D.C. Circuit. However, the Model Penal Code provides:

(1) Conduct that the actor believes to be necessary to avoid a harm or evil to himself or to another is justifiable, provided that:

- (a) the harm or evil sought to be avoided by such conduct is greater than that sought to be prevented by the law defining the offense charged; and
- (b) neither the code nor other law defining the offense provides exceptions or defenses dealing with the specific situation involved; and
- (c) a legislative purpose to exclude the justification claimed does not otherwise plainly appear.

(2) When the actor was reckless or negligent in bringing about the situation requiring a choice of harms or evils or in appraising the necessity for his conduct, the justification afforded by this Section is unavailable in a prosecution for any offense for which recklessness or negligence, as the case may be, suffices to establish culpability.

Here, the defendants seek to elicit evidence and argue to the jury that the future harm to our democracy and voting rights which will be caused by the Supreme Court's failure to overturn *Citizens United* posed a greater evil than the utterance of loud language in the Supreme Court building. Further, nothing in 40 U.S.C. § 6134 provides an exception or defense for the specific situation involved here, and no legislative purpose to exclude a necessity defense plainly appears in the text or history of the statute.

Even if this Court concludes that the legal basis for the defense of necessity is weak, the absence of any other valid or practicable defense counsels in favor of permitting the defendants an opportunity to at least argue the necessity defense in closing. *See United States v. Sams*, 1996 U.S. App. LEXIS 33556 (D.C. Cir. Dec. 9, 1996) ("It may be possible for a defense lawyer to satisfy the *Strickland* standard while using a defense with little or no basis in the law if this constitutes a reasonable strategy of seeking jury nullification when no valid or practicable defense exists[.]")

The constitutional right to present a defense requires that defendants be permitted to have their theory of the case argued to the jury. *United States v. De Loach*, 504 F.2d 185, 189 (D.C. Cir. 1974) (“A criminal defendant’s constitutional rights to counsel and to a jury trial encompass a right to have his theory of the case argued vigorously to the jury.”) This Court has broad discretion to control the scope of closing, but it is generally an abuse of that discretion for the court should to exclude anything other than “statements that misrepresent the evidence or the law, introduce irrelevant prejudicial matters, or otherwise tend to confuse the jury.” *Id.* Defendants should therefore be permitted to argue the necessity defense in closing.

III. Permitting Questioning and Argument About History of 18 U.S.C. § 1507

Defendants seek to question the government’s witnesses about the Supreme Court police’s enforcement of 18 U.S.C. § 1507. The defendants expect to elicit on cross-examination testimony that the statute has rarely (if ever) been used to charge protesters in and near the Supreme Court building. On information and belief, anti-abortion protesters seeking to overturn *Roe v. Wade* are generally allowed to demonstrate on the sidewalk in front of the Supreme Court, even if they are doing so with the intent to influence the Court’s future decisions. The legislative history of the statute reveals the susceptibility of the statute to biased application, as the committee report specifically focused on targeting Communists and their sympathizers. *See Report of the Senate Judiciary Committee No. 732, 81st Congress 1st session (July 20, 1949).*

Further, the legislative history reveals that 18 U.S.C. § 1507 was passed to deal with a specific problem – the perceived inability of the contempt statute to reach those *picketing*

outside the courthouse. *Id.* If the statute is rarely or never used for its intended purpose, but instead is used to target these particular defendants (who were not *picketing* but made brief statements *inside* the courthouse), a reasonable inference of bias can be drawn which could affect how the jury credits the police officers' testimony.

Conclusion

For the foregoing reasons, the Court should grant this motion and exclude Justice Scalia's comments; permit argument about the necessity defense; and permit questioning and argument about enforcement of 18 U.S.C. § 1507.

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